IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT – IV

Item No. 401
CP(CAA)85/ND/2024

IN THE MATTER OF:

Spoton Logistics Pvt Ltd And Spoton Supply Chain Solutions Pvt Ltd And Delhivery Limited ... Applicant

Under Section 230-232 of the Companies Act, 2013.

Order delivered on 20.01.2026

CORAM:
SHRI MANNI SANKARIAH SHANMUGA SUNDARAM,
HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. P. Nagesh, Senior Advocate
Mr. Anubhav Goel, Ms. Preeti Goel,
Ms. Rashmi Mishra & Ms. Priyanka Dhyani
For the RD : Dr. Kishorkumar Devarwade, Assistant Director
For the OL : Mr. Kartikeya Asthana, Adv.

For Income Tax Deptt. : Mr. Indruj Singh Rai (SSC)
Mr. Rahul Singh & Mr. Sanjeev Menon (JSC)
Mr. Nishant Shokeen, Ms. Sumita Singh & Mr. Yash Bhardwaj (Advocates)

HYBRID HEARING (PHYSICAL & VC)

ORDER

Learned Senior Counsel for the applicant, Learned Counsel for the Income Tax Department, Assistant Director on behalf of the Regional Director and Learned Counsel for the Official Liquidator are present. Assistant Director on behalf of the Regional Director and Learned Counsel for the Income Tax Department have drawn our attention to their reports. The relevant paragraphs of Income Tax Department's Reports are extracted below:

Key Conditions and Procedures under Section 66 of the Companies Act, 2013:

1. *Special Resolution and Tribunal Confirmation: A company must pass a special resolution to reduce its share capital. Following which the company must seek confirmation from the Hon'ble NCLT for the said reduction to take place.*
2. *Permissible Methods of Reduction: The reduction of share capital can be executed in various ways including:*
   - *Extinguishing or reducing the liability or any of its shares concerning the unpaid share capital.*
   - *Cancelling any paid-up share capital that is lost or unrepresented by available assets.*
   - *Paying off any paid-up share capital that is in excess of the company's needs.*
3. *Restrictions:*
   A company cannot reduce its share capital if it is in arrears in the repayment of any deposits accepted by it, or the interest payable thereon.

4. Notification to Stake Holders:

Upon receiving an application for reduction, the Hon'ble NCLT is required to notify the Central Government, the Registrar, the Securities and Exchange Board of India (SEBI) in the case of listed companies, and the creditors or the company. These stakeholders have a period of three months to make any representations

5. Creditor Protection: The Hon'ble NCLT will Confirm the reduction only if it is satisfied that the debts or claims of every creditor have been obtained. Additionally, the accounting treatment proposed for the reduction must conform to the accounting standards specified under the Act, and a certificate to this effect by the company's auditor must be filed with the Tribunal.

6. Filing with Registrar: After the confirmation of the Reduction by the Hon'bl e NCLT the company must file the certified copy of the order and a minute detailing the reduction with the registrar within 30 days of the confirmation by the tribunal after which the registrar will then register the reduction and issue a certificate to that effect.

7. Exclusion of Buy Backs: The Provisions of the Section 66 of the Companies Act, 20 13 do not apply to the buy-back of a company's own securities, which is governed separately under Section 68 of the Companies Act, 2013.

8. Liability of Officers:

If any officer of the company knowingly conceals the name of any creditor entitled to object to the reduction, misrepresents the nature or amount of the debt or claim of any creditor, or abets such concealment or misrepresentation, they shall be liable under Section 447 of the Companies Act, 2013.

Seeing the above facts and circumstances, it is emphatically submitted that this scheme must be considered by the Hon'ble NCLT under Section 66 and under no circumstances under Section 230-232 of the Companies Act, 2013.

The relevant paragraphs of RD's report are extracted below:

5. In this regard, it is submitted that Explanation below Section 230 of the Companies Act, 2013 read as follows-

"For removal of doubts, it is hereby declared that the provisions of Section 66 shall not apply to the reduction of share capital effected in pursuance of the order of the Tribunal under this Section."

6. Therefore, it is submitted that there is no bar under the Companies Act, 2013 for considering this Scheme under Section 230-232 of the Companies Act, 2013 by the Hon'ble Tribunal.

Heard. ***Order stands reserved***.

Sd/-

ATUL CHATURVEDI
MEMBER (TECHNICAL)

Sd/-

MANNI SANKARIAH SHANMUGA SUNDARAM
MEMBER (JUDICIAL)

MUKESH